

Court No. - 72

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Sanjay Kumar Pachori, J.

Put up this case as fresh on 06.05.2025.

Order Date :- 11.4.2025

Ishan

Court No. - 87

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Prashant Kumar, J.

On the request of learned counsel for the applicant, put up on 04.07.2025 as fresh.

Order Date :- 26.5.2025

Manish Himwan

Court No. - 73

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Dinesh Pathak, J.

1. Heard learned counsel for the applicant and learned A.G.A. for the State.
2. In the department inquiry, present applicant had been held guilty. Thereafter, FIR has been lodged against him for doing some misconduct between 30.06.1998 to 04.08.2016.
3. After due deliberation at length, learned counsel for the applicant has prayed for adjournment for the day.
4. List this matter on 28.07.2025 as fresh.
5. Matter shall not be treated as tied up or part heard to this Bench.

Order Date :- 18.7.2025

Aiman

Court No. - 76

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the applicant seeks time to file amendment application.

The case stands released.

List this case on 14th August, 2025, as fresh before the appropriate Bench.

The matter shall not be treated as part heard or tied up to the Bench.

Order Date :- 4.8.2025

S.Prakash

Court No. - 76

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Vikram D. Chauhan, J.

1. As prayed by learned counsel for applicant, list this case on 20.8.2025 as fresh before appropriate Bench.
2. It is made clear that the case shall not be treated as part heard or tied up to this Bench.

Order Date :- 14.8.2025

D. Tamang

Court No. - 72

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla,Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Deepak Verma,J.

Criminal Misc.Amendment Application No.2 of 2025

1. Amendment application is **allowed**.
2. Learned counsel for the applicant is permitted to make necessary amendment in the prayer clause of application u/s 528 BNSS during the course of the day.

Order Date :- 20.8.2025

SKD

Court No. - 72

Case :- APPLICATION U/S 528 BNSS No. - 10943 of 2025

Applicant :- Natthi Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Pankaj Kumar Shukla,Ritesh Kumar Singh

Counsel for Opposite Party :- G.A.

Hon'ble Deepak Verma,J.

List in the next cause list as fresh.

Order Date :- 20.8.2025

SKD



HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 528 BNSS No. - 10943 of 2025

Natthi Prasad

.....Applicant(s)

Versus

State of U.P. and Another

.....Opposite
Party(s)

Counsel for Applicant(s) : Pankaj Kumar Shukla, Ritesh Kumar Singh

Counsel for Opposite Party(s) : G.A.

Court No. - 72

HON'BLE DEEPAK VERMA, J.

1. Heard learned counsel for the applicants, learned AGA for the State and perused the record.
2. The instant FIR has been lodged against the applicants by Executive Engineer in Electricity Department. In the interest of justice, it is necessary to serve the copy of the present petition to Electricity Department.
3. Learned counsel for the applicants is granted three days time to serve the copy of the petition to the Electricity Department.
4. Put up this case on 02.09.2025 as fresh.

(Deepak Verma,J.)

August 26, 2025
Nisha



2025:AHC:153980

HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 528 BNSS No. - 10943 of 2025

Natthi Prasad

.....Applicant(s)

Versus

State of U.P. and Another

.....Opposite Party(s)

Counsel for Applicant(s)	:	Pankaj Kumar Shukla, Ritesh Kumar Singh
Counsel for Opposite Party(s)	:	G.A.

Court No. - 72

HON'BLE DEEPAK VERMA, J.

1. Heard learned counsel for the applicant, Sri Narendra Kumar Tiwari, learned counsel for the opposite party no.2/Electricity Department and learned AGA for the State.

2. The present 528 B.N.S.S. application has been filed to quash the cognizance order dated 13.02.2025 as well as entire proceeding of Criminal Case No.1781 of 2025 (State vs. Natthi Prasad) arising out of Case Crime No.0085 of 2022, under sections 409, 420 I.P.C., Police Station Kotwali Nagar, District Saharanpur, pending in the court of Chief Judicial Magistrate, Saharanpur.

3. It is alleged in the FIR that the applicant was posted at Electricity Distribution Division 1st, District Saharanpur from 30.06.1998 to 04.08.2016 as Office Assistant III, thereafter, applicant was transferred from Electricity Distribution Division 1st to Electricity Distribution Division Devband on 05.08.2016. Immediately thereafter, on 24.09.2016 applicant was suspended and attached with the office of Superintendent Engineer, Electricity Distribution Circle, Saharanpur and later on 16.06.2017 applicant was reinstated on the previous post. FIR is registered in the year 2022. Applicant has embezzled an amount of Rs.1,45,00,775/- which has come out after departmental enquiry. Counsel for the applicant submits that the applicant is innocent and has been falsely implicated in the present case. Applicant was never posted on the place which is alleged in the FIR. Allegation of embezzlement is without any evidence. Moreover, the other official involved in the embezzlement has not made accused in the present case. He next submitted that the Investigating Officer has not collected any evidence against the applicant. Learned counsel for the applicant has placed reliance upon Paragraphs 11, 12 and 13 of the affidavit. On perusal of statement of the witnesses, it is evident that the allegation in regard to embezzlement of amount is false and vague. Learned counsel for the applicant next submits that allegation alleged in the FIR and evidence in that regard, no document has been referred by the Investigating Officer. Summoning by learned magistrate is without application of judicial mind.

4. Learned counsel for the applicant submits that applicant challenged the FIR by filing **Criminal Misc.Writ Petition No.4363 of 2022 (Natthi Prasad vs. State of U.P. & 3 others)** and this Court on 22.04.2022 has passed the following orders:-

"It is urged that the allegations of irregularity in permanent disconnection etc., can at best be attributed to the Executive Engineer who exercised such authority under the Electricity Supply Code, 2005 but no action has been taken against him. Merely because petitioner has already superannuated in 2018, the department has implicated the petitioner. Reliance is placed upon the order of Chairman dated 4.3.2022 wherein higher officers have also been held responsible.

Before proceeding further we call upon learned counsel for respondent No. 4 to obtain specific instructions from the Department concern. It shall also be informed as to whether any action has been taken against the higher authorities ?

Put up as fresh on 5.5.2022.

Subject to petitioner co-operating in the investigation no coercive action shall be taken against the petitioner pursuant to Case Crime No. 0085 of 2022, under Sections 409 and 420 I.P.C., Police Station - Kotwali, District - Saharanpur."

4. Per contra, learned A.G.A. and learned counsel for the opposite party no.2 opposed the submission raised by applicant's counsel and submitted that on perusal of FIR and material evidence, prima-facie, offence is made out against the applicant. After departmental enquiry, it has been found that the applicant is involved in embezzling an amount of Rs.1,45,00,775/- and submissions raised by learned counsel for the applicant are disputed question of facts, which cannot be adjudicated at this stage.

5. The grounds taken in the application reveal that many of them relate to disputed question of fact. This Court is of the view that it is well settled that the appreciation of evidence is a function of the trial court. This Court in exercise of power under Section 482 Cr.P.C. cannot assume such jurisdiction and put an end to the process of trial provided under the law. It is also settled by the Apex Court in catena of judgments that The impugned criminal proceeding against the applicants is abuse of the process of the Court and is liable to be quashed by this Court.the power under Section 482 Cr.P.C. at pre-trial stage should not be used in a routine manner but it has to be used sparingly, only in such an appropriate cases, where it manifestly appears that there is a legal bar against the institution or continuance of the criminal proceedings or where allegations made in First Information Report or charge-sheet and the materials relied in support of same, on taking their face value and accepting in their entirety do not disclose the commission of any offence against the accused. The disputed questions of facts and defence of the accused cannot be taken into consideration at this pre-trial stage.

6. In view of the above, in the light of judgment of the Apex Court in the matters of **R.P. Kapur Vs. State of Punjab, A.I.R. 1960 S.C. 866, Manik B. Vs. Kadapala**

Sreyes Reddy and another, 2023 Live Law (SC) 642, State of Haryana Vs. Bhajan Lal, 1992 SCC (Cr.) 426, State of Bihar Vs. P.P.Sharma, 1992 SCC (Cr.) 192 and lastly Zandu Pharmaceutical Works Ltd. Vs. Mohd. Saraful Haq and another (Para-10) 2005 SCC (Cr.) 283, no ground for quashing the proceedings of the aforesaid case, is made out which may call for any interference by this Court in exercise of its inherent power under Section 482 Cr.P.C. as the same do not suffer from any illegality or infirmity.

7. Considered the submission of both the parties. It is alleged in the FIR that the applicant after departmental enquiry was found involved in embezzlement of amount of Rs.1,45,00,775/-. All allegations in the FIR and statement of the witnesses are supported the prosecution case. Moreover, the order passed by the Division Bench in regard to quashing of FIR, now Investigating Officer has submitted the charge-sheet after collecting material evidence against the applicant. Prima-facie offence is made out against the applicant. No interference is warranted. The present 528 B.N.S.S. application of applicant- **Natthi Prasad**, is hereby **dismissed** with the aforesaid observation.

September 2, 2025
SKD

(Deepak Verma,J.)